

25SMCV05299 25SMCV05299

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV05299 Hearing Date: September 3, 2026 Dept: N

TENTATIVE RULING

Defendant The City of Santa Monica's Demurrer to the second cause of action in the First Amended Complaint Filed by Plaintiff Marilyn Alexander is SUSTAINED with thirty (30) days leave to amend.

Defendant The City of Santa Monica to give notice.

Meet and Confer

Before filing its demurrer, "the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. § 430.41, subd. (a).) The demurring party must file and serve a meet and confer declaration stating either: "(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer;" or "(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (Id. at subd. (a)(3).)

Defendant's counsel states that she spoke with opposing counsel via telephone and by letter regarding the requirements to state a claim for breach of mandatory duty as to Plaintiff's original complaint. (Ford Decl., ¶ 2.) On March 23, 2026, she spoke with opposing counsel once more after receiving a copy of the first amended complaint, informing opposing counsel that Defendant intended to file a demurrer to the cause of action for breach of mandatory duty on the grounds that Plaintiff failed to state a cause of action. (Id., ¶ 4.)

The Court finds Defendant's meet and confer efforts to be sufficient and turns to the demurrer's merits.

Second Cause of Action: Breach of Mandatory Duty by Government Employee, per Government Code § 815.6

Government Code section 815.6 states: "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Gov. Code, § 815.6.) "Enactment" is defined as "a constitutional provision, statute, charter, provision, ordinance or regulation." (Gov. Code, § 810.6.)

Plaintiff alleges that Defendant was legally obligated to comply with the following enactments: (1) Santa Monica Right-of-Way Management Regulations, SMMC Chapter 7.06; (2) Public Works General Notes; (3) California Public Utilities Code Section 8054; (4) California Public Utilities Code General Order 128, Rules 32.3, 32.7; and/or (5) Industry standards such as: ASTM C857. (FAC ¶ 38.) First, industry standards are not “enactments” as defined by Government Code section 810.6; thus, they cannot impose a mandatory duty on Defendant. Second, Plaintiff does not specify which “Public Works General Notes” she is referring to in the FAC, and neither party addresses the Notes in their moving papers. Therefore, the Court finds this too fails to serve as an “enactment” imposing a mandatory duty on Defendant.

Third, as to SMMC Chapter 7.06, Plaintiff’s argument that Defendant is not exempt from the provisions of this Chapter because the FAC does not clearly allege that the utility box is city-owned is illogical. (Opp., at p. 6.) Plaintiff alleges in the FAC that Defendant “is engaged in the business of owning, leasing, licensing, operating, purchasing, developing, maintaining, controlling, possessing, and exerting control over the public city sidewalk...which contained an in-ground public sidewalk utility box.” (FAC ¶ 3.) The FAC does not in its entirety mention a third-party utility company. Based on a plain reading of the FAC, Defendant owned the utility box. Thus, because “City-owned utilities and facilities installed in the PROW [Public right-of-way] are exempt from the provisions of this Chapter,” it cannot impose a mandatory duty on Defendant.

Lastly, both parties acknowledge that Public Utilities Code section 8054 and CPUC General Order 128 apply to electricity and/or electrical supply. Defendant argues that the enactments do not apply here because the utility box is a water box; Plaintiff argues in opposition that this is an extrinsic fact and the FAC does not allege what kind of a utility box is at issue here. (Opp., at pp. 7-9; Reply at p. 5.) Plaintiff’s argument, however, is self-inflicted. Plaintiff has not sufficiently pled that the two enactments apply to Defendant here because the FAC does not allege that the utility box at issue is for electricity or electrical supply. Accordingly, Defendant’s demurrer to the second cause of action is SUSTAINED with leave to amend.

CONCLUSION

Defendant The City of Santa Monica’s Demurrer to the second cause of action in the First Amended Complaint Filed by Plaintiff Marilyn Alexander is SUSTAINED with thirty (30) days leave to amend. Defendant The City of Santa Monica to give notice.